

		subject matter’ standard is <i>not</i> enough here. The court must be convinced that the information is <i>directly relevant</i> to a cause of action or defense, i.e., that it is <i>essential</i> to determining the truth of the matters in dispute.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:320 [citations omitted, emphasis in original].) Similarly, Defendants’ speculation Plaintiff “may have” been required to have a physical prior to her employment or have work restrictions unrelated to the subject incident does not demonstrate the records are essential to determining the truth of the matters in dispute. Moreover, Defendants failed to demonstrate there are less intrusive means of obtaining the information, such as written discovery to Plaintiff. Thus, the Court DENIES Plaintiff’s motion to quash, but GRANTS Plaintiff’s motion to limit scope of the subpoenas to the following: (1) Wage and earnings information; (2) Time missed from work; (3) Records relating to medical leave associated with the subject injuries; and (4) Records reflecting work restrictions or accommodation attributable to Plaintiff’s medical condition arising from the incident.
9.	GONZALEZ VS. COSTCO WHOLESALE CORPORATION 2026-01540078	MOTION TO QUASH SUBPOENA Plaintiff Mayra Gonzalez’s motion to quash the Amended Deposition Subpoena for Production of Business Records served by defendant Costco Wholesale Corporation upon Friends of Family Health Center is GRANTED in part and DENIED in part. Pursuant to Code of Civil Procedure section 1987.1, the Court may “make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders,” upon motion by a party. (Code Civ. Proc. §1987.1(a) and (b)(1).) On May 7, 2026, Defendant served an Amended Deposition Subpoenas for the Production of Business Records on Friends of Family Health Center (“Subpoena”). The Subpoena contains two document requests which seek records from January 1, 2023 to the present concerning Plaintiff’s complaints or symptoms of a psychological nature, and billings related to Plaintiff’s complaints or symptoms of psychological conditions. Plaintiff objects to the Subpoena on the grounds of privacy.

The right to privacy extends to medical records. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198). “The right to privacy, however, is not absolute.” (*Grafilo v. Wolfsohn* (2019) 33 Cal.App.5th 1024, 1034.) Plaintiffs “may not withhold information which relates to any physical or mental condition which they have put in issue...” (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 864 (*Britt*).) “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. ...The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) “A court must then balance these competing considerations.” (*Id.*). “The burden is on the party seeking the constitutionally protected information to establish direct relevance.” (*Davis v. Superior Ct.* (1992) 7 Cal.App.4th 1008, 1017.)

However, “plaintiffs are ‘not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury’; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (*Britt, supra*, 20 Cal.3d at p. 864 [internal citations omitted].)

Here, the documents requested by the Subpoena are relevant to Plaintiff’s allegations in her Complaint that she suffered severe emotional distress, severe anxiety, panic attacks, and declining mental health, as a result of Defendants’ conduct. The Subpoena is also narrowly tailored except to the extent it seeks documents relating to complaints or symptoms of “high blood pressure” which Defendant has not shown is a psychological condition. Plaintiff has not placed hypertension or any cardiovascular condition at issue in this litigation, and the inclusion of “high blood pressure” is not sufficiently tailored to the emotional distress claim asserted. Although Plaintiff objects to references to “sleeplessness, lack of appetite or other stomach upset,” these can be indicative of complaints or symptoms of emotional distress.

Based on the foregoing, the Subpoena is modified to remove the phrase “high blood pressure” from both requests.

Plaintiff to give notice.